



## POLICE DEPARTMENT

August 20, 2025

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> floor  
New York, NY 10007

### **POLICE COMMISSIONER'S PENALTY DEPARTURE**

**Re:** CCRB Case No. 202402747 (Incident Date: February 20, 2024) regarding Police Officer Juan Marte, Tax No. 961919 (PODS Case No. C-034801), and Police Officer Taylor Williams, Tax No. 970319 (PODS Case No. C-034802)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Juan Marte and Police Officer Taylor Williams and has determined that their actions do not warrant disciplinary action.

All of the officers on scene were faced with a volatile, dangerous, and difficult situation. Police Officer Marte and Police Officer Williams responded to an emergency request for additional officers by Police Officer Albulena Kukaj and Police Officer Yvette Juste. Police Officer Kukaj and Police Officer Juste responded to a 911 call, where an employee of a gift shop stated he asked the complainant "ten times" to leave the store, but he refused. The employee also stated the complainant put his hands on him, and other individuals ran out of the store due to the complainant. Police Officer Kukaj and Police Officer Juste spent several minutes attempting to gain voluntary compliance, to no avail. Despite their efforts, the situation quickly evolved into a violent struggle. Despite the arrival of numerous officers, the officers still had a difficult time placing the complainant into custody, for removal to the hospital.

Patrol Guide Procedure No. 221-01 (Force Guidelines), authorizes uniformed members of the service to use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all cases, any application or use of force must be reasonable under the circumstances. After reviewing the body worn camera footage, and taking into account the totality of

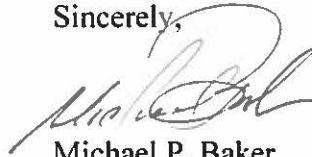
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the circumstances, the actions of Police Officer Marte and Police Officer Williams have been deemed reasonable, within guidelines, and do not rise to the level of excessive force.

Therefore, based on the foregoing, Police Officers Marte and Williams will not receive any disciplinary action for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read "Michael P. Baker", written over a light blue circular stamp.

Michael P. Baker  
Assistant Chief  
Commanding Officer  
Police Commissioner's Office